

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

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LAURIE ROBERTS,

Plaintiff,

-against-

SECOND AMENDED
COMPLAINT
02 CV 4192 (DAB)

THE CITY OF NEW YORK, JEROME TEAHAN,
JOHN BRESLIN, WAYNE BATTLE, "JOHN"
COLLINS, MARK ANAYA, "JOHN" KANE,
"JOHN" CUCINELLO and "JOHN" WRIGHT,
individually and in their official
capacity as employees of the New
York City Police Department,

Defendants.

Jury Trial Demanded

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LAURIE ROBERTS, by his attorney, Matthew Flamm,
alleges the following, upon information and belief, as his
Complaint:

Nature of the Action

1. This civil rights action arises from the May 5, 2001 unlawful arrest of Laurie Roberts. Plaintiff seeks declaratory relief pursuant to 28 U.S.C. §2201, and, under 42 U.S.C. §1983, compensatory and punitive damages for violation of his civil rights.

Jurisdiction

2. This action arises under the United States Constitution and 42 U.S.C. §1983. This Court has subject matter jurisdiction pursuant to 28 U.S.C. §1331 and §1343(3). Plaintiff asserts jurisdiction over the City of New York under 28 U.S.C. §1367. Plaintiff requests that

this Court exercise pendent jurisdiction over those state law claims arising out of the same common nucleus of operative facts as do plaintiff's federal claims.

Venue

3. Under 28 U.S.C. §1391(b) and (c), venue is proper in the Southern District of New York because defendant City of New York resides in that judicial District.

Parties

4. Plaintiff LAURIE ROBERTS is a citizen of the United States of America residing in the State and City of New York, County of Kings. Mr. Roberts is a union carpenter who had never before been arrested.

5. Defendant CITY OF NEW YORK is a Municipal Corporation within New York State. Pursuant to §431 of its Charter, the City of New York has established and maintains the New York City Department of Police as a constituent department or agency. At all times relevant, the City of New York employed the Police personnel involved in the incident underlying this lawsuit.

6. Defendants JEROME TEAHAN, JOHN BRESLIN, WAYNE BATTLE, "JOHN" COLLINS, MARK ANAYA, "JOHN" KANE, "JOHN" CUCINELLO and "JOHN" WRIGHT (collectively, the "individual defendants") were at all times relevant duly appointed and

acting employees of the New York City Police Department. On the afternoon of May 5, 2001, the individual defendants were assigned to the 67th Precinct in Brooklyn, New York.

7. At all times relevant, the individual defendants were acting under color of state law.

8. The individual defendants involved in the incident underlying this lawsuit were, at all times relevant, agents, servants and employees acting within the scope of their employment by defendant City of New York.

Notice of Claim

9. On July 27, 2001 and within ninety days after claims arose, plaintiff filed a Notice of Claim upon defendant City of New York, by delivering copies thereof to the person designated by law as a person to whom such claims may be served.

10. The Notice of Claim was in writing, sworn to by the plaintiff, and contained the name and post office address of the plaintiff and plaintiff's attorney.

11. The claim was assigned Claim Number 2001PI017692 by the Comptroller's office.

12. The Notice of Claim set out the nature of the claim, the time when, the place where and manner by which the claim arose, and the damages and injuries claimed to have been sustained.

13. The City of New York has neglected and failed to adjust the claims within the statutory time period.

14. This action was commenced within one year and ninety days after the happening of the event upon which the claims are based.

Facts Underlying
Plaintiff's Claims for Relief

15. On May 5, 2001 beginning at or around 4:00 p.m. at and inside of Aladdin Locksmith, a hardware store at 846 Utica Avenue, Brooklyn, New York, the individual defendants, or some of them, assaulted, battered, falsely arrested and falsely charged Mr. Roberts.

16. Mr. Roberts was issued Summons Number 408528735-7 and prosecuted for Disorderly Conduct in Kings County Criminal Court.

17. Mr. Roberts was arrested and charged by defendants even though plaintiff had committed no crimes and despite that defendants had no reasonable basis to believe that plaintiff had committed any crimes.

18. The individual defendants, despite having a reasonable opportunity to do so, took no action to prevent, end or truthfully report the unlawful arrest and prosecution of Mr. Roberts.

19. On or about March 18, 2002, the charges against Mr. Roberts were dismissed.

20. As a result of the foregoing, Mr. Roberts, who had never before been arrested, suffered mental anguish, shock, fright, physical pain and suffering, trauma and deprivation of his constitutional rights, among other injuries. In addition, Mr. Roberts suffered the debasement of being unlawfully arrested and prosecuted and subjected to unjustified assault at the hands of the defendants. He suffered loss of freedom. He was forced to appear in Kings County Criminal Court to answer the police officers' baseless charges.

21. At all times relevant, in using force on plaintiff and in arresting and prosecuting him, these defendants acted intentionally, willfully, maliciously, negligently, and with reckless disregard for and deliberate indifference to plaintiff's rights and physical and mental well-being.

FIRST CLAIM FOR RELIEF FOR VIOLATING
PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE
SEARCHES AND SEIZURES UNDER THE FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

22. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated here.

23. By the actions described above, the individual defendants, or some of them, deprived Mr. Roberts of his rights secured by the Constitution and laws of the United States in violation of 42 U.S.C. §1983, including, but not limited to his right to be free and secure in his person

and his right to be free from arrest or search, except on probable cause or pursuant to warrant.

24. As a consequence thereof, plaintiff has been injured.

SECOND CLAIM FOR RELIEF
FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE
FROM UNREASONABLE SEARCHES AND SEIZURES UNDER ARTICLE
ONE, SECTION TWELVE OF THE NEW YORK STATE CONSTITUTION

25. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated here.

26. By the actions described above, the individual defendants, or some of them, deprived Mr. Roberts of his rights secured by the Constitution of the State of New York, including, but not limited to his right to be free and secure in his person and his right to be free from arrest or search except on probable cause or pursuant to warrant.

27. As a consequence thereof, plaintiff has been injured.

THIRD CLAIM FOR RELIEF FOR FALSE IMPRISONMENT

28. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated here.

29. By reason of the foregoing, plaintiff was intentionally confined without privilege or probable cause to believe a crime had been committed. Plaintiff was aware of and did not consent to the confinement. Plaintiff was thereby falsely arrested and imprisoned.

30. As a consequence thereof, plaintiff has been injured.

FOURTH CLAIM FOR RELIEF FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE FORCE UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

31. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated here.

32. By the actions described above, the individual defendants, or some of them, deprived Mr. Roberts of his rights secured by the Constitution and laws of the United States in violation of 42. U.S.C. §1983, including, but not limited to his right to be free from excessive and unreasonable force.

33. As a consequence thereof, plaintiff has been injured.

FIFTH CLAIM FOR RELIEF FOR VIOLATING PLAINTIFF'S RIGHT TO BE FREE FROM UNREASONABLE FORCE UNDER ARTICLE ONE, SECTION TWELVE OF THE NEW YORK STATE CONSTITUTION

34. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated here.

35. By the actions described above, the individual defendants deprived Mr. Roberts of his rights secured by the Constitution of the State of New York, including, but not limited to plaintiff's right to be free from excessive or unreasonable force.

36. As a consequence thereof, plaintiff has been injured.

SIXTH CLAIM FOR RELIEF FOR ASSAULT

37. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated herein.

38. By the actions described above, plaintiff was intentionally placed in apprehension of imminent harmful and offensive contact.

39. As a consequence thereof, plaintiff has been injured.

SEVENTH CLAIM FOR RELIEF FOR BATTERY

40. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated herein.

41. By the actions described above, plaintiff was intentionally touched in a harmful and offensive manner.

42. As a consequence thereof, plaintiff has been injured.

EIGHTH CLAIM FOR RELIEF FOR MALICIOUS PROSECUTION IN VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION

43. Plaintiff repeats the allegations of paragraphs 1-20 as though fully stated here.

44. The individual defendants, or some of them, without probable cause and with actual malice, commenced and maintained, or permitted to be commenced and maintained, a Criminal Court proceeding against Mr. Roberts charging him with Disorderly Conduct (Penal Law § 240.20).

45. Mr. Roberts suffered a deprivation of liberty resulting from government seizure in the form of legal process and being compelled, under threat of issuance of an arrest warrant and arrest, to appear in Criminal Court to contest the baseless charges.

46. The prosecution terminated in plaintiff's favor when, on March 18, 2002, the charges against Mr. Roberts were dismissed by the Court on the merits.

47. As a consequence thereof, plaintiff has been injured.

NINTH CLAIM FOR RELIEF FOR
VIOLATION OF PLAINTIFF'S RIGHT UNDER THE
SIXTH AMENDMENT TO THE UNITED STATES CONSTITUTION

48. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated here.

49. By the actions described above, and by filing or allowing to be filed false allegations with the Criminal Court of the City of New York, the individual defendants, or some of them, deprived plaintiff of rights secured by the United States Constitution, including, but not limited to his right to a fair trial.

50. As a consequence thereof, plaintiff has been injured.

TENTH CLAIM FOR RELIEF FOR FAILURE TO INTERVENE
TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL RIGHTS

51. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated here.

52. The individual defendants, and each of them, failed to intervene to prevent, end or truthfully report the unlawful use of force, arrest and prosecution of Mr. Roberts, despite having a reasonable opportunity to do so.

53. As a consequence thereof, plaintiff had been injured.

ELEVENTH CLAIM FOR RELIEF AGAINST DEFENDANT
BATTLE FOR IMPROPER SUPERVISION OF HIS SUBORDINATES

35. Plaintiff repeats each allegation of paragraphs 1-21 as if set forth in full herein.

36. Defendant BATTLE is a Police Sergeant with direct supervision of and responsibility for the conduct of other individual defendants named herein.

37. Defendant Battle, addition to his personal involvement in the incident herein, failed to properly supervise his subordinates or to otherwise take action to remedy the wrongs done to the plaintiff.

38. As a consequence thereof, plaintiff has been injured.

TWELFTH CLAIM FOR RELIEF FOR NEGLIGENCE

54. Plaintiff repeats the allegations of paragraphs 1-21 as though fully stated here.

55. The acts complained of herein resulted from defendant City of New York, through its agents, servants and employees, breaching its duty properly to assign, train, supervise or discipline its law enforcement

personnel, including assigning, training, supervising or disciplining individual Police personnel who unlawfully arrest, detain or use force, or who make false allegations.

56. The defendant City of New York's failure properly to assign, train, supervise or discipline its Police Officers, including the Police Officers involved herein, constitutes acquiescence in and tolerance of ongoing unconstitutional arrests, uses of force and false allegations and allowed the defendants to believe that they could with impunity arrest and prosecute Mr. Roberts.

57. By reason of the foregoing, the individual defendants, either individually and through defendant's agents, servants and employees, failed and refused to use such care in the performance of their duties as a reasonably prudent law enforcement employees would have used under similar circumstances.

59. As a consequence thereof, plaintiff has been injured.

Request for Relief

WHEREFORE, plaintiff respectfully requests that judgment be entered as follows:

(A) Declaratory relief as follows:

1. A declaration that plaintiff's right to be free from unreasonable searches and seizures

under the United States Constitution was violated;

2. A declaration that plaintiff's right to be free from unreasonable searches and seizures under the New York State Constitution was violated;

3. A declaration that plaintiff's right to be free from unreasonable force under the United States Constitution was violated;

4. A declaration that plaintiff's right to be free from unreasonable force under the New York State Constitution was violated;

5. A declaration of plaintiff's right to be free from malicious prosecution under United States Constitution was violated;

6. A declaration that plaintiff's right under the Sixth Amendment of the United States Constitution was violated;

(B) Compensatory damages in an amount to be fixed at trial;

(C) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages in an amount to be fixed at trial;

(D) An award to plaintiff of the costs and disbursements herein;

(E) An award of attorney's fees under 42 U.S.C.

§1988;

(F) Such other and further relief as this Court may
deem just and proper.

Dated: March 13, 2003
Brooklyn, New York



MATTHEW FLAMM **MF1309**
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To: Genevieve Nelson
Assistant Corporation Counsel
Attorney for Defendants City of New York, Teahan and
Breslin

WAYNE BATTLE

"JOHN" COLLINS

MARK ANAYA

"JOHN" KANE

"JOHN" CUCINELLO

"JOHN" WRIGHT

UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF NEW YORK

-----x

LAURIE ROBERTS,

Plaintiff,

DECLARATION OF SERVICE

02 CV 4192 (DAB)

- against -

THE CITY OF NEW YORK and
OTHERS,

Defendants.

-----x

STATE OF NEW YORK)

: SS.:

COUNTY OF KINGS)

MATTHEW FLAMM, declares the following under
penalty of perjury pursuant to 28 U.S.C. §1746:

That on the 14th day of March 2003, I served the
annexed SECOND AMENDED COMPLAINT upon Assistant
Corporation Counsel Genevieve Nelson, attorney for
defendants City of New York, Breslin and Teahan, at 100
Church Street, New York, New York that being the address
within the State theretofore designated for that purpose,
by personally delivering a copy thereto.



Matthew Flamm